

ruptcy, and B. becomes bankrupt in the lifetime of A., the clause takes effect (*f*). [And if the trust be for A. for life and the proviso that on his charging or incumbering the property or becoming bankrupt, the gift to him shall be absolutely forfeited, and the subsequent gifts accelerated, the proviso will be good, although there is no person capable of taking under the subsequent gifts (*g*). But a gift of real estate to A. her heirs and assigns, subject to a proviso determining her estate, in the event of her bankruptcy, and limiting the estate over, in that event, to other persons is an absolute gift to A., and the proviso is void for repugnancy (*h*). The general opinion (*i*) has until recently been that real or personal estate might be given to a person absolutely with a partial restraint *on the power [*102] of alienation, as for instance a condition against alienation within a particular period, but in a late case *Pearson, J.* held such a condition to be void (*a*).]

15. But a clause divesting the property on bankruptcy is not brought into operation by a deed of insolvency (*b*), and a like clause on "alienation" will extend only to a disposition by the act of the party, and not to a transfer by operation of law, as *bankruptcy* (*c*), unless it can be collected from the context that the term was intended by the settlor to have so wide a signification (*d*); and a warrant of attorney to enter up a judgment which is followed by a charging order will not be an act of alienation, unless the charge was immediately in the contemplation of the parties at the time

(*f*) *Re Muggeridge's Trust*, John. 625.

[(*g*) *Hurst v. Hurst*, 21 Ch. D. 278; *Doe v. Eyre*, 5 C. B. 713; *Robinson v. Wood*, 27 L. J. N. S. Ch. 726.]

[(*h*) *Re Machu*, 21 Ch. D. 838.]

[(*i*) *Large's case*, 2 Leon. 82; *Churchill v. Marks*, 1 Coll. 441; *Kearsley v. Woodcock*, 3 Hare, 185; Co. Lit. 223a; *Shep. Touch.* 129; *Re Macleay*, 20 L. R. Eq. 186, and cases there cited; *Jarm. on Wills*, 4th ed. vol. 2, p. 18; *Williams on Settlements*, 134; *Tudor's Real Prop. Cases*, 3d ed. 972, &c.]

[(*a*) *Re Rosher*, 26 Ch. D. 801.]

(*b*) *Montefiore v. Enthoven*, 5 L.

R. Eq. 35.

(*c*) *Lear v. Legget*, 2 Sim. 479; S. C. 1 R. & M. 690; *Whitfield v. Prickett*, 2 Keen, 608; *Wilkinson v. Wilkinson*, Sir Geo. Coop. R. 259; and see S. C. 3 Sw. 528. [But as to a bankruptcy on the debtor's own petition, see *Re Amherst's Trusts*, 13 L. R. Eq. 464.]

(*d*) *Dommatt v. Bedford*, 6 T. R. 684; *Cooper v. Wyatt*, 5 Mad. 482; [see *Ex parte Eyston*, 7 Ch. D. 145.]